

OFFICE OF THE SECRETARY

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June 19, 2019

The Honorable Annemarie G. Pace
Judge of the Superior Court
County of San Bernardino
247 West Third Street
San Bernardino, CA 92415

Re: Orlando Matthews
CDCR No: AC0458
Case No: FSB059330
Date of Sentence: July 13, 2017

Dear Honorable Annemarie G. Pace:

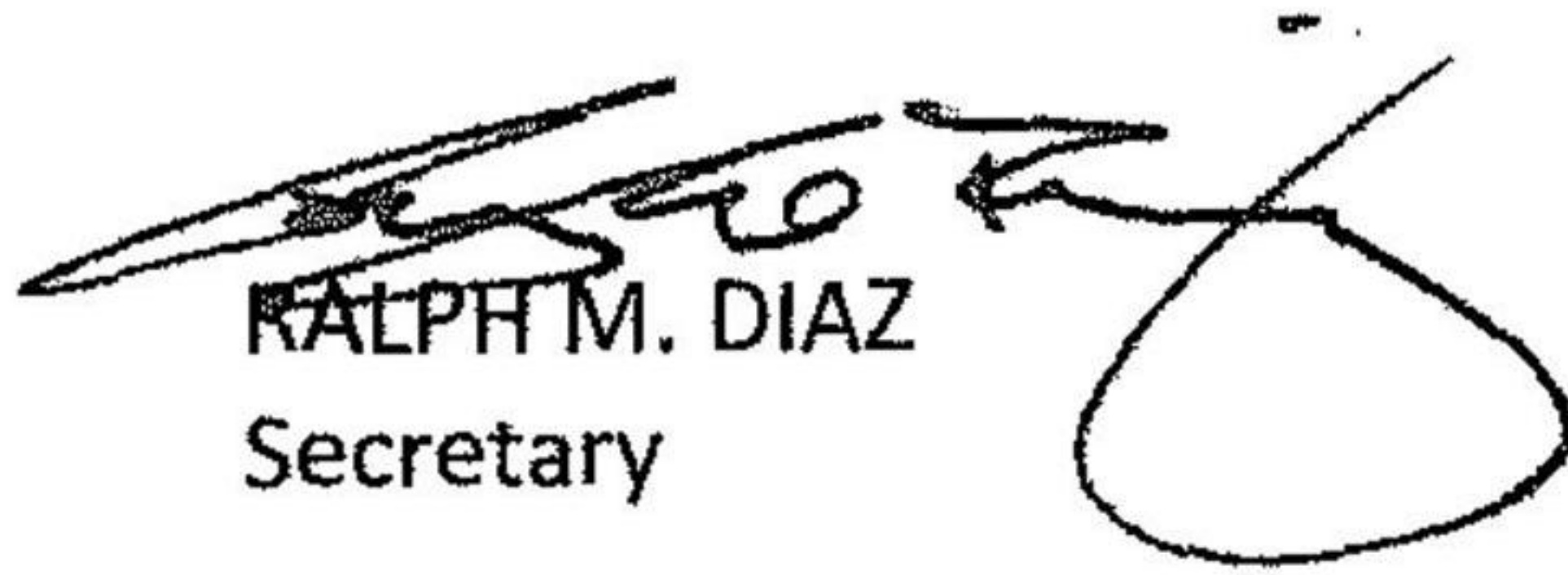
The purpose of this letter is to provide the court with the authority to resentence inmate Orlando Matthews, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Matthews is commended for remaining disciplinary free since being received to CDCR on January 19, 2010. Inmate Matthews is currently assigned as a California Prison Industry Authority (CALPIA), Optical Shipping Optician and his supervisor notes inmate Matthews works well with the team, is highly motivated, and requires little supervision. Inmate Matthews also participates in College (Correspondence), Freedom to Choose, Victims and Offenders, Healing Others' Pain through Empathy (VO-HOPE), Self-Help Awareness and Rehabilitation Program (SHARP), Arts in Corrections, Journey to Wellness, Serenity Yoga Society, Alcoholics, and Narcotics Anonymous.

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Having reviewed the enclosed documentation, it appears that inmate Matthews' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Nancy Eberhardt, County Court Executive Officer
San Bernardino County District Attorney's Office
San Bernardino County Public Defender's Office